

		identify[] and account[] for countervailing considerations”].) “This means at a minimum that the [moving] party . . . must come forward with a specific enumeration of the facts sought to be withheld and specific reasons for withholding them.” (<i>Id.</i>) Indeed, CRC rule 2.551(b)(1) requires that a motion to seal “must be accompanied by a memorandum and a declaration containing facts sufficient to justify the sealing.” <u>Merits</u> Plaintiff has submitted a declaration attesting that the material sought to be sealed contains “Balt’s highly sensitive, non-public, confidential and trade secret information.” (ROA 1957.) Among other things, the documents contain “summary technical documentation, design files, and reporting related to Balt’s Titan catheter system (Exhibits 25-26, 35, 51-53, 62), product design specifications, validations plans, manufacturing procedures, risk analysis, and other reporting related to Balt’s Ballast Long Sheath (Exhibits 27-30, 58, 63-65), risk assessment files, product design specifications, and other reporting related to Balt’s Squid products (Exhibit 31-32, 42-45, 49), validation protocol for Balt’s Magic catheter (Exhibit 33, 55, 61), [and] performance studies for Balt’s Eclipse 2L Dual Lumen Balloon Catheter (Exhibit 34).” (ROA 1968.) “Balt undertakes significant efforts to maintain the secrecy of such information, and it would suffer significant harm if such information were revealed to the public, including to competitors.” (<i>Id.</i>) “If this information were made public, competitors would gain confidential insight into Balt’s internal products which could be used to create competing products, resulting in an unfair competitive advantage.” (ROA 1957.) Accordingly, the Court finds that Plaintiff has met the procedural requirements for the instant motion and sufficiently demonstrated overriding interests support sealing the requested items. The proposed order (ROA 1953) is deficient. Within (5) court days of this ruling, Plaintiff is also ORDERED to submit a revised proposed order setting forth the information required by CRC rule 2.550(e)(1)(A), as well as identifying the specific filings—by pleading title and ROA number—that are to be sealed in accordance with this ruling. Plaintiff shall give notice.
107	Higgins vs. Spigen Inc. 2024-01376537	Motion to Seal Plaintiff Mary Higgins moves to seal a settlement agreement (and refence thereto) between plaintiff and defendant Spigen, Inc., which defendant lodged conditionally under seal in support of plaintiff’s motion approval of a PAGA settlement. For the following reasons, the motion is denied. Unless confidentiality is required by law, court records are presumed to be open. Cal. R. Ct. 2.550(c). A record must not be filed under seal without a court order. Cal. R. Ct. 2.551(a). The court must not permit a record to be filed under seal based solely on the agreement or stipulation of the parties. <i>Id.</i>

	A party requesting that a court record be filed under seal “must file a motion or an application for an order sealing the record.” Cal. R. Ct. 2.551(b)(1). “The motion or application must be accompanied by a memorandum and a declaration containing facts sufficient to justify the sealing.” <i>Id.</i> A court may order a record be filed under seal only if the court expressly finds facts that establish: (1) There exists an overriding interest that overcomes the right of public access to the record; (2) The overriding interest supports sealing the record; (3) A substantial probability exists that the overriding interest will be prejudiced if the record is not sealed; (4) The proposed sealing is narrowly tailored; and (5) No less restrictive means exist to achieve the overriding interest. Cal. R. Ct. 2.550(d). An order sealing a record must specifically state the facts that support the findings, and direct the sealing of only those documents and pages, or, if reasonably practicable, portions of those documents and pages, that contain the material that needs to be placed under seal. Cal. R. Ct. 2.550(e)(1). All other portions of each document or page must be included in the public file. <i>Id.</i> Here, plaintiff has failed to file a declaration accompanying the motion to seal and has thus failed to provide facts justifying the proposed sealing. To the extent plaintiff relies on the declaration supporting the motion to approve the settlement (ROA 89), it contains no such facts. Should plaintiff choose to file a motion to seal that satisfies procedural requirements, the declaration must explain with factual support, among other things, why plaintiff’s individual settlement agreement should be shielded from, e.g., aggrieved employees whose interests the named plaintiff purports to represent.
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